



CHAPTER ci.

An Act to empower the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne and the mayor aldermen and burgesses of the county borough of Gateshead to provide lifts warehouses and other works in connection with the bridge authorised by the Newcastle-upon-Tyne and Gateshead Corporations (Bridge) Act 1924 and for other purposes. A.D. 1926.
[4th August 1926.]

WHEREAS by the Newcastle-upon-Tyne and Gateshead Corporations (Bridge) Act 1924 the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne (hereinafter referred to as "the Newcastle Corporation") and the mayor aldermen and burgesses of the county borough of Gateshead (hereinafter referred to as "the Gateshead Corporation") were empowered to construct a bridge across the River Tyne with approaches thereto and other works :

And whereas it is expedient that the Newcastle Corporation and the Gateshead Corporation or one of them should be empowered in connection with the said bridge and approaches to construct or provide lifts or other apparatus and warehouses offices and other accommodation in or under the structure of the said bridge and approaches :

[Ch. ci.] *Newcastle-upon-Tyne* [16 & 17 GEO. 5.]
and Gateshead Corporations (Bridge) Act, 1926.

A.D. 1926.

And whereas it is expedient that the Newcastle Corporation should be empowered to borrow money for defraying the capital expenditure to be incurred for the purposes of this Act and that the financial provisions contained in this Act (including provisions for contributions by the Gateshead Corporation towards the interest on and sinking or redemption fund charges in respect of part of the moneys so to be borrowed) should be made :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1. This Act may be cited as the Newcastle-upon-Tyne and Gateshead Corporations (Bridge) Act 1926 and the Newcastle-upon-Tyne and Gateshead Corporations (Bridge) Act 1924 and this Act may be cited together as the Newcastle-upon-Tyne and Gateshead Corporations (Bridge) Acts 1924 and 1926.

Interpre-
tation.

2. In this Act—

“ The Act of 1924 ” means the Newcastle-upon-Tyne and Gateshead Corporations (Bridge) Act 1924 ;

“ The joint committee ” means the joint committee of the Newcastle Corporation and of the Gateshead Corporation appointed pursuant to section 4 (Powers of joint committee) of the Act of 1924 ;

“ The prescribed proportion ” where used in relation to any sum to which the Gateshead Corporation are by this Act required to contribute or entitled to receive means the proportion of that sum ascertained in accord-

[16 & 17 GEO. 5.] *Newcastle-upon-Tyne* [Ch. ci.]
and Gateshead Corporations (Bridge) Act, 1926.

ance with subsection (2) of section 67. (Con- A.D. 1926.
 tributions by Gateshead Corporation towards
 interest and sinking fund charges on loans
 for joint works) of the Act of 1924;

and terms to which meanings are assigned by the Act
 of 1924 or any Act wholly or partially incorporated
 therewith have the same respective meanings unless
 there be something in the subject or context repugnant
 to such construction.

3. The two Corporations may if they think fit Power to
 at any time (whether during the construction or after two Cor-
 the completion of the improvement) construct or provide porations to
 fit up and equip in the city and the county borough construct
 or one of them all or any of the following structures lifts for
 apparatus and accommodation (that is to say) :— goods and
 warehouses
 and other
 accommo-
 dation.

(a) lifts and other apparatus in or in connection
 with the bridge or the approaches thereto for
 the conveyance of goods articles and things
 from or to the level of the bridge and the said
 approaches to or from the level of the quays
 or streets beneath the same; and

(b) warehouses and other accommodation for the
 storage or deposit of goods articles and things
 and offices or other like accommodation for
 the purposes of any trade or business in or
 under the structure of the bridge and the said
 approaches.

4. The provisions of section 4 (Powers of joint As to
 committee) of the Act of 1924 shall apply and have exercise of
 effect as if the powers by this Act conferred upon the powers by
 two Corporations had been conferred upon them by joint
 the Act of 1924. committee.

5. All structures apparatus and accommodation Vesting of
 constructed or provided by the two Corporations under structures
 the powers of the section of this Act of which the apparatus
 marginal note is "Power to two Corporations to and accom-
 "construct lifts for goods and warehouses and other modation
 "accommodation" shall for the purposes of section 44 provided
 (As to vesting of bridge) of the Act of 1924 be deemed under this
 to be part of the bridge and the approaches thereto. Act.

6.—(1) The two Corporations may occupy and Use or
 use for any of the purposes of the Act of 1924 or of letting of
 this Act all or any of the warehouses offices or other warehouses
 &c.

[Ch. ci.] *Newcastle-upon-Tyne* [16 & 17 GEO. 5.]
and Gateshead Corporations (Bridge) Act, 1926.

A.D. 1926. — accommodation constructed or provided by them under the powers of this Act and each or either of the two Corporations with the consent in writing of the other of them may upon and subject to such terms and conditions as may be agreed between them occupy and use for the purposes of any of their powers or duties all or any of such warehouses offices or other accommodation.

(2) (a) Unless and except so far as any warehouses offices or other accommodation so constructed or provided as aforesaid shall be occupied and used pursuant to subsection (1) of this section the two Corporations or (if so agreed between the two Corporations) the Newcastle Corporation as respects any warehouses offices or other accommodation vested in them under the provisions of this Act and the Gateshead Corporation as respects any warehouses offices or other accommodation so vested in them may grant leases of or let the same to any company body or person for such term at such rent and upon and subject to such terms and conditions as they may think fit.

(b) All rents or other payments received by the two Corporations or either of them under or in respect of any lease or agreement for letting granted or entered into under this subsection shall be paid to the Newcastle Corporation who shall account for and apply the same in accordance with the provisions of this Act.

Mainten-
ance
working &c.
of structures
apparatus
and accom-
modation.

7.—(1) The Newcastle Corporation shall maintain and repair all structures apparatus and accommodation constructed or provided by the two Corporations under the powers of the section of this Act of which the marginal note is “Power to two Corporations to construct lifts for goods and warehouses and other accommodation” and (subject to the provisions of this Act) shall work and manage all lifts and apparatus and manage all warehouses offices and other accommodation so constructed or provided and shall as soon as practicable after the thirty-first day of March and the thirtieth day of September in each year deliver to the Gateshead Corporation an account showing the expenses incurred by the Newcastle Corporation in or about such maintenance repair working and management

during the half year ending on such thirty-first day of March or thirtieth day of September (as the case may be) and the receipts derived during that half year from such working and from the leasing or letting of any such warehouses offices or other accommodation or from the occupation and use thereof by the two Corporations or either of them under the powers conferred by subsection (1) of the section of this Act of which the marginal note is "Use or letting of warehouses &c."

A.D. 1926.
—

(2) Within one month after the delivery of any such account the Gateshead Corporation shall pay to the Newcastle Corporation the prescribed proportion of the amount (if any) by which the aggregate of the expenses appearing in that account exceeds the aggregate of the receipts appearing therein or shall be entitled to receive from the Newcastle Corporation the prescribed proportion of the amount (if any) by which the aggregate of the receipts appearing in that account exceeds the aggregate of the expenses appearing therein. If any sum payable by or to the Gateshead Corporation is not paid to or by the Newcastle Corporation within the said period of one month such sum shall be a debt due from the Gateshead Corporation to the Newcastle Corporation or from the Newcastle Corporation to the Gateshead Corporation (as the case may be) and shall be recoverable by the Corporation to whom the same is due in any court of competent jurisdiction with interest thereon at the rate of five per centum per annum from the expiration of the said period of one month.

8.—(1) The Newcastle Corporation in the city and the Gateshead Corporation in the county borough or either of them may if they think fit on the recommendation of the joint committee but not otherwise at any time (whether during the construction or after the completion of the improvement) construct or provide fit up and equip in or in connection with the bridge or the respective approaches thereto lifts and other apparatus for the conveyance of passengers from or to the level of the bridge and the said approaches to or from the level of the quays or streets beneath the same.

Lifts for
passengers.

[Ch. ci.] *Newcastle-upon-Tyne* [16 & 17 Geo. 5.]
and Gateshead Corporations (Bridge) Act, 1926.

A.D. 1926. — (2) Any lifts or other apparatus constructed or provided under the powers of this section shall be constructed provided fitted up equipped maintained and worked by and at the expense of the Corporation or respective Corporations exercising such powers and all moneys received by such Corporation or respective Corporations in respect of the working and use of the lifts or apparatus constructed or provided by them under the powers of this section shall be retained by them and applied in or towards paying the expenses of maintaining managing and working such lifts or apparatus and the interest on and paying or setting aside the instalments or appropriations to sinking funds in respect of the moneys borrowed for the purposes of such construction or provision and the cost of managing loans incurred in respect of moneys so borrowed Any balance of the moneys so received after making the payments or setting aside the sums hereinbefore provided for shall be carried to the credit (as respects the Newcastle Corporation) of the city fund and (as respects the Gateshead Corporation) of the district fund of the county borough.

Machinery
and motive
power.

9.—(1) In connection with and for the purpose of working any lifts or apparatus constructed or provided under the provisions of this Act the two Corporations or either of them (as the case may be) may provide fit up instal and use all such engines machinery and appliances and provide and use such motive power as they may think fit.

(2) For the purposes of this Act the cost of the provision fitting up and installation of engines machinery and appliances under the provisions of this section shall be deemed to be part of the cost of constructing or providing the lifts or apparatus in connection with which such engines machinery and appliances are provided fitted up and installed.

(3) Electricity generated by the Newcastle Corporation may be used for the purpose of working any lifts or apparatus constructed or provided in the city under the provisions of this Act other than lifts or apparatus exclusively serving warehouses offices or other accommodation so constructed or provided but except for the purposes authorised by this subsection nothing in

[16 & 17 GEO. 5.] *Newcastle-upon-Tyne* [Ch. ci.]
and Gateshead Corporations (Bridge) Act, 1926.

this Act shall be construed as conferring upon either of the two Corporations any power to generate electricity. A.D. 1926.

(4) In the event of electricity being used as motive power under the provisions of this section the electricity shall be so used and all works in connection therewith shall be so constructed and maintained as to prevent any interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

10. The two Corporations or either of them (as the case may be) may charge for the use of any lifts or apparatus constructed or provided by them jointly or severally under the powers of this Act any reasonable sums not exceeding such sums as may from time to time be recommended by the joint committee. Power to charge for use of lifts.

11.—(1) The two Corporations as respects any lifts or apparatus constructed or provided under the powers of the section of this Act of which the marginal note is "Power to two Corporations to construct lifts for goods and warehouses and other accommodation" and each of the two Corporations as respects any lifts or apparatus constructed or provided by them respectively under the powers of the section of this Act of which the marginal note is "Lifts for passengers" may make byelaws with respect to the use of such lifts or apparatus and the conduct of persons using the same. Byelaws.

(2) The provisions of sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws made under this section.

12.—(1) The Newcastle Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the city fund and the city rate and they shall pay off all moneys so borrowed within the respective periods (which shall be deemed to be the prescribed periods in the enactments Power to Newcastle Corporation to borrow.

[Ch. ci.] *Newcastle-upon-Tyne* [16 & 17 GEO. 5.]
and *Gateshead Corporations (Bridge) Act, 1926.*

A.D. 1926. applied by this Act) mentioned in the third column of the said table (namely):—

1	2	3
Purpose.	Amount.	Period for Repayment.
(a) For the construction or provision of warehouses offices or other accommodation under the powers of the section of this Act of which the marginal note is "Power to two Corporations to construct lifts for goods and warehouses and other accommodation."	£ 34,800	Sixty years from the date or dates of borrowing.
(b) For the construction or provision and fitting up and equipment of lifts and other apparatus under the powers of the said section and of the section of this Act of which the marginal note is "Lifts for passengers."	16,700	Twenty years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Newcastle Corporation may also borrow such further sums as they may from time to time require for any of the purposes of this Act with the consent of the Minister of Health.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister of Health and that period shall be the prescribed period for the purposes of the enactments applied by this Act.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Newcastle Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister of Health.

(3) The provisions of this section prescribing or relating to the prescription of the revenues funds or rates which may be mortgaged or charged shall not affect the operation of section 6 (Charge of Corporation stock) of the Newcastle-upon-Tyne Corporation Loans Act 1882 or limit the powers conferred on the Corporation

by section 92 (Power to use one form of mortgage for all purposes) of the Newcastle-upon-Tyne Corporation Act 1911 or by any Act which may be passed in the present session of Parliament enabling the Newcastle Corporation to establish a consolidated loans fund. A.D. 1926.

13. The enactments referred to in section 64 (Incorporation of certain provisions of existing Acts relating to borrowing) of the Act of 1924 shall subject to the provisions of this Act extend and apply mutatis mutandis to and in relation to the moneys borrowed by the Newcastle Corporation under the powers of this Act and to the repayment thereof. Applying certain provisions of existing Acts relating to borrowing.

14. The Newcastle Corporation shall from time to time pay to the Gateshead Corporation out of money to be borrowed by the Newcastle Corporation under the powers of this Act such sums of money as the Gateshead Corporation may require for expenditure properly chargeable to capital account for the purposes of the section of this Act of which the marginal note is "Lifts for passengers." Newcastle Corporation to provide money for capital expenditure by Gateshead Corporation.

15.—(1) The cost incurred in or in connection with the construction provision fitting up and equipment of any structures apparatus or accommodation under the powers of the section of this Act of which the marginal note is "Power to two Corporations to construct lifts for goods and warehouses and other accommodation" shall be defrayed by the Newcastle Corporation. Incidence of cost of provision of structures apparatus and accommodation.

(2) (a) In each account delivered pursuant to section 67 (Contributions by Gateshead Corporation towards interest and sinking fund charges on loans for joint works) of the Act of 1924 by the Newcastle Corporation to the Gateshead Corporation after the Newcastle Corporation shall have borrowed any moneys under the powers of this Act—

- (i) for the purposes (a) and (c) mentioned in the table set forth in subsection (1) of the section of this Act of which the marginal note is "Power to Newcastle Corporation to borrow" or for either of those purposes; or
- (ii) for the purpose (b) mentioned in the said table so far as the moneys so borrowed are paid

[Ch. ci.] *Newcastle-upon-Tyne* [16 & 17 GEO. 5.]
and Gateshead Corporations (Bridge) Act, 1926.

A.D. 1926.

to the Gateshead Corporation pursuant to the section of this Act of which the marginal note is "Newcastle Corporation to provide money for capital expenditure by Gateshead Corporation"

the Newcastle Corporation shall include with reference to any moneys so borrowed the like particulars as to the amount borrowed and the interest thereon and the instalments or appropriations to sinking funds paid or set aside and the cost of management of loans incurred by the Newcastle Corporation in respect thereof as they are required by the said section 67 to include with reference to moneys borrowed by them under the powers of the Act of 1924 for the purposes mentioned in subsection (1) of that section.

(b) The sums payable by the Gateshead Corporation to the Newcastle Corporation pursuant to subsection (2) of the said section 67 in respect of any account delivered under the provisions of subsection (1) of that section shall include—

the prescribed proportion of the aggregate amount of the sums specified in that account for interest on moneys borrowed by the Newcastle Corporation under the powers of this Act for the purposes referred to under head (i) in the foregoing paragraph (a) of this subsection and the instalments or appropriations to sinking funds and the cost of management of loans in respect of moneys so borrowed; and

the whole of the interest on moneys borrowed by the Newcastle Corporation under the powers of this Act for the purposes referred to under head (ii) in the said paragraph (a) and of the instalments or appropriations to sinking funds and the cost of management of loans in respect of moneys so borrowed.

(c) The provisions of the said section 67 with respect to the payment to and recovery by the Newcastle Corporation of sums payable by the Gateshead Corporation thereunder shall extend and apply to the payment and recovery of all sums payable by the

Gateshead Corporation under the provisions of this subsection. A.D. 1926.

16.—(1) The provisions of subsections (1) and (2) of section 65 (Inquiries by Minister of Health) of the Act of 1924 shall extend and apply to and for the purposes of this Act as if those subsections had been re-enacted in this Act. Inquiries by Minister of Health.

(2) If the Newcastle Corporation shall under the provisions of the said subsection (2) as so extended and applied make any payment to the Minister of Health in relation to—

- (i) the borrowing of money for the purposes (a) and (c) referred to in the table set forth in subsection (1) of the section of this Act of which the marginal note is “Power to Newcastle Corporation to borrow” or for either of those purposes; or
- (ii) the borrowing of money for the purpose (b) referred to in the said table so far as the moneys so borrowed are paid to the Gateshead Corporation pursuant to the section of this Act of which the marginal note is “Newcastle Corporation to provide money for capital expenditure by Gateshead Corporation”)

the Gateshead Corporation shall pay to the Newcastle Corporation the prescribed proportion of the amount so paid by the Newcastle Corporation to the said Minister in relation to such borrowings as are referred to under the foregoing head (i) and the whole of any amount so paid in relation to such borrowings as are referred to under the foregoing head (ii).

17. Subject to the provisions of this Act the two Corporations may enter into and carry into effect agreements with respect to the construction provision fitting up equipping maintaining repairing working and use of any structures apparatus or accommodation under or for the purposes of this Act or otherwise in relation to the exercise of the powers of this Act. Agreements between two Corporations.

18. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing Costs of Act.

[Ch. ci.] *Newcastle-upon-Tyne* [16 & 17 GEO. 5.]
and Gateshead Corporations (Bridge) Act, 1926.

A.D. 1926. — officer of the House of Lords or of the House of Commons shall be paid by the Newcastle Corporation in the first instance out of the city fund and city rate and any sums so paid shall be repaid or transferred to the city fund out of moneys to be borrowed under the provisions of this Act as hereinbefore provided.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses : . .
Adastral House, Kingsway, London, W.C. 2; York Street, Manchester;
1, St. Andrew's Crescent, Cardiff; or 120, George Street, Edinburgh;
or through any Bookseller.